SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 1474 of 1973 (YEAR: 1973)

CORAM: S.M. SIKRI, J.M. SHELAT, K.S. HEGDE, A.N. GROVER, ET AL. (13-JUDGE BENCH)

Kesavananda Bharati
... Appellant(s) / Petitioner(s)
Versus
State of Kerala
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 368, Article 13, Article 31C

JUDICIAL HEADNOTE & SUMMARY

Thirteen-judge bench formulated the Basic Structure Doctrine, establishing that Parliament's constituent power to amend the Constitution cannot alter or destroy its basic features.

RATIO DECIDENDI

The Court held that: Thirteen-judge bench formulated the Basic Structure Doctrine, establishing that Parliament's constituent power to amend the Constitution cannot alter or destroy its basic features. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Kesavananda Bharati v. State of Kerala (Writ Petition (Civil) No. 1474 of 1973) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 368, Article 13, Article 31C. Thirteen-judge bench formulated the Basic Structure Doctrine, establishing that Parliament's constituent power to amend the Constitution cannot alter or destroy its basic features.

OPERATIVE ORDER

ORDER: Decided